

remedies, the need for damages relief [directly under the Constitution] might be obviated." *Davis v. Passman*, 442 U. S. 228, 248 (1979). Nevertheless, because the majority decides that the President is absolutely immune from a *Bivens* action as well, I shall express my disagreement with that conclusion.

In *Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U. S. 388 (1971), we held that individuals who have suffered a compensable injury through a violation of the rights guaranteed them by the Fourth Amendment may invoke the general federal-question jurisdiction of the federal courts in a suit for damages. That conclusion rested on two principles: First, "[t]he very essence of civil liberty certainly consists in the right of every individual to claim the protection of the laws," *id.*, at 397, quoting *Marbury v. Madison*, 1 Cranch, at 163; second, "[h]istorically, damages have been regarded as the ordinary remedy for an invasion of personal interests in liberty." 403 U. S., at 395. In *Butz v. Economou*, 438 U. S. 478 (1978), we rejected the argument of the Federal Government that federal officers, including Cabinet officers, are absolutely immune from civil liability for such constitutional violations—a position that we recognized would substantially undercut our conclusion in *Bivens*. We held there that although the performance of certain limited functions will be protected by the shield of absolute immunity, the general rule is that federal officers, like state officers, have only a qualified immunity. Finally, in *Davis v. Passman*, *supra*, we held that a Congressman could be held liable for damages in a *Bivens*-type suit brought in federal court alleging a violation of individual rights guaranteed the plaintiff by the Due Process Clause. In my view, these cases have largely settled the issues raised by the *Bivens* problem here.

These cases established the following principles. First, it is not the exclusive prerogative of the Legislative Branch to create a federal cause of action for a constitutional violation. In the absence of adequate legislatively prescribed remedies, the general federal-question jurisdiction of the federal